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Provision of July 18, 2023
Register of provisions
n. 317 of July 18, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code on
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the report from the Guardia di Finanza – Special Unit for Privacy Protection and
Technological Fraud,
sent with a note dated November 22, 2022, which reports
a control carried out on November 10, 2022,
at the commercial establishment "Camille Albane Paris"
(owned by Prodav s.r.l.), located in Peschiera
Borromeo (MI), Via della Liberazione 8, which confirmed
the presence of a functioning surveillance camera lacking the appropriate
informative sign and in the absence of the guarantees
provided for in Article 4 of Law 300/1970 referred to
by Article 114 of the Code;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the secretary
general pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. The report received and the initiation of
the procedure.

With a complaint dated January 14, 2022, the
Authority was notified of the installation, at the store
named "Camille Albane Paris" located within
the shopping center called "Galleria Borromea"
in Peschiera Borromeo (MI), Via della Liberazione 8,
(owned by Prodav s.r.l.) of a surveillance system
not compliant with the regulations on the protection of
personal data, as the cameras, positioned both
outside and inside the store, were not
indicated by appropriate informative signs.

Following an inspection activity requested
by the Office, the Guardia di Finanza – Special Unit
for Privacy Protection and Technological Fraud, with a note dated
November 22, 2022, sent to the Guarantor the documents related to

the control carried out on November 10, 2022, at the aforementioned commercial establishment.

The report indicated the presence of a surveillance system consisting of a functioning camera positioned inside the premises in the absence of informative signs regarding its presence.

It was also confirmed that, despite the commercial establishment having employees, the installation of the surveillance system had been carried out without the necessary authorization from the competent Labor Inspectorate.

Subsequent to the inspection, with a note dated November 18, 2022, the Company sent supplementary documentation, including photographic evidence, proving the removal of the camera located above the cash register.

The Office, with a note dated February 8, 2023 (prot. n. 22296), notified the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 5, paragraph 1, letter a) and 13, 88 of the Regulation and 114 of the Code.

With a note dated March 1, 2023, the Company sent defensive writings stating that:

- only one camera was active and functioning;
- the employees were aware of the installation of the camera inside the premises;
- they acted in good faith, under the “erroneous belief” that the obligation to post informative signs was not necessary;
- they had proceeded, immediately after the on-site inspection by the Guardia di Finanza, to “dismantle the system” as evidenced by supplementary photographic documentation sent on November 18, 2022.

2. The legal framework of the processing carried out

The use of surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a surveillance area.”

For this purpose, the data controller must place appropriate informative signs according to the indications contained in point 3.1. of the provision on surveillance - April 8, 2010

[1712680] (in this sense also the FAQs on surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices,

point 7) specify that “Regarding surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while further mandatory details can be provided by other means (second level). The guidelines also provide that “Such information can be provided in combination with an icon to give, in a clearly visible, intelligible, and legible manner, an overview of the processing envisaged (Article 12, paragraph 7, of the GDPR). The format of the information must be adapted to various locations. The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) “to enable the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

The processing of personal data carried out in the context of the employment relationship, if necessary for the purpose of managing that relationship (see Articles 6, paragraph 1, letter c); 9, paragraph 2, letter b) of the Regulation), must be conducted in compliance with the general principles set out in Article 5 of the Regulation, and in particular the principle of lawfulness, according to which processing is lawful if it is in accordance with applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation). Consistent with this approach, Article 88 of the Regulation has preserved national provisions of greater protection (“more specific rules”) aimed at ensuring the protection of the rights and freedoms concerning the processing of personal data of workers. The national legislator has approved, as a more specific provision, Article 114 of the Code, which among the conditions for the lawfulness of processing has established compliance with the requirements set forth in Article 4, Law No. 300 of May 20, 1970. The violation of Article 88 of the Regulation is subject, if the requirements are met, to the application of an administrative monetary sanction pursuant to Article 83, paragraph 5, letter d) of the Regulation.

According to the aforementioned Article 4, Law No. 300 of 1970, video surveillance systems, if they also entail “the possibility of remote control” of employees' activities, “may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets,” and their installation must, in any case, be carried out following the conclusion of a collective agreement with the unitary trade union representation or with the company trade union representatives or, where it has not been possible to reach such an agreement or in the absence of representatives, only if preceded by the issuance of a specific authorization from the Labor Inspectorate.

The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of video surveillance systems. The violation of this provision is subject to criminal sanctions (see Article 171 of the Code). The processing of personal data carried out by the company through the video surveillance system is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a), 13, and 114 of the Code.

Nor is the circumstance, represented by the company, that the workers “were aware” of the processing of personal data through the video surveillance system sufficient to eliminate the obligation to comply with the aforementioned regulations. In fact, on this point, the jurisprudence of legitimacy has repeatedly held that Article 4, Law No. 300 of 1970 cited, “protects collective and superindividual interests,” therefore even the consent, possibly given by individual workers for the installation of systems, is not equivalent to the necessary activation of the procedure with the representatives of the employees or, in the absence thereof, under the control of the public authority (see, among others, Cass., Section III Criminal, May 8, 2017, No. 22148 and December 17, 2019, No. 50919 cited). Furthermore, it is noted that the Guarantor has repeatedly emphasized that in the workplace, consent does not constitute a suitable legal basis for the processing of employees' personal data (see, among others, provision of December 13, 2018, No. 500, web document No. 9068983, point 3.1.; with specific reference to video surveillance see provisions of July 4, 2013, No. 336, web document No. 2578071 and July 18, 2013, No. 361, web document No. 2605290).

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made, it has emerged that the video surveillance system, installed at the premises of the activity called "Camille Albane Paris," owned by Prodav s.r.l., was active and functioning, and that no sign bearing the information referred to in Article 13 of the Regulation had been posted; moreover, it was installed in the absence of the guarantees provided for by Article 4 of Law No. 300/1970, referenced by Article 114 of the Code, in relation to the work activities carried out by the Company's personnel in the monitored area.

In this specific case, it is therefore proven that personal data processing has been carried out through a video surveillance system, in the absence of the prescribed information. This conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is obliged to provide the data subject with all the information regarding the essential characteristics of the processing; since the installation of the video surveillance system had not been previously authorized by the Labor Inspectorate, the processing was also carried out in violation of Article 114 of the Code concerning the protection of personal data.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

The processing of personal data carried out by the individual enterprise is therefore unlawful, in the terms outlined above, in relation to Articles 5, par. 1, lett. a) (principle of transparency) and 13 (information) of the Regulation and Article 114 of the Code concerning the protection of personal data. The violation established in the terms of the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation). It should also be noted that, following the on-site inspection, the Company decided to dismantle the video surveillance system, proving its disinstallation through photographic evidence; this was also confirmed in the defense writings submitted by the party to the Authority.

5. Injunction Order. The Authority, pursuant to Article 58, par. 2, lett. i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary penalty provided for by Article 83, par. 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the illegality of which has been established in the terms outlined above, in relation to Articles 5, par. 1, lett. a), 13 of the Regulation and Article 114 of the Code.

With reference to the elements listed in Article 83, par. 2, of the Regulation for the application of the administrative monetary penalty and its quantification, considering that the penalty must be "effective, proportionate, and dissuasive in each individual case" (Article 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- with regard to the nature, severity, and duration of the violation, the conduct of the data controller was considered, the circumstance that only one camera was installed which was removed during the investigation process, as well as the responsibility related to the failure to provide information to the data subjects and to implement the guarantee procedure provided for by Article 114 of the Code;
- the absence of specific previous violations by the company related to breaches of the regulations on the protection of personal data;
- the circumstance that the company, as the data controller, submitted defense writings to the Authority proving what was declared with appropriate documentation.

It is also considered that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness that the Authority must adhere to in determining the amount of the penalty (Article 83, par. 1, of the Regulation).

Based on the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the monetary penalty at the sum of €1,000.00 (one thousand) for the violation of Articles 5, 13 of the Regulation and 114 of the Code. In this context, also considering the type of

violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to Articles 57, par. 1, lett. f) and 83 of the Regulation, the illegality of the processing carried out by Prodav s.r.l. through the use of the video surveillance system installed at the location named "Camille Albane Paris," of which it is the owner, in the terms outlined in the reasoning, for the violation of Articles 5, 13 of the Regulation and 114 of the Code;

ORDERS

Prodav s.r.l. P.I. 07559730960, with registered office in Milan Via Angeloni 33, to pay the sum of €1,000.00 (one thousand) as an administrative monetary penalty for the violations indicated in this provision;

COMMANDS

therefore, the same Prodav s.r.l. to pay the sum of €1,000.00 (one thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed penalty within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 18, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei